PURCHASE AND SALE AGREEMENT

Saddlebrook Maple Homes | Minneapolis, MN

Seller	Gable Point Capital
Buyer	Beacon Hollow Investors
Property	Saddlebrook Maple Homes, 6021 Market Drive, Minneapolis, MN 44234
Purchase Price	$37,960,000
Effective Date	November 24, 2023

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

3. Earnest Money Deposit. Within 46 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Due Diligence Period. Buyer shall have 23 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

10. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. Time is of the essence with respect to each and every provision of this instrument.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Earnest Money Deposit. Within 35 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

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15. Due Diligence Period. Buyer shall have 41 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

16. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

17. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

18. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

20. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

21. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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22. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

23. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

24. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Earnest Money Deposit. Within 18 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

26. Due Diligence Period. Buyer shall have 3 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

28. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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29. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

30. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

31. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

32. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

33. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

34. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

35. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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36. Earnest Money Deposit. Within 2 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

37. Due Diligence Period. Buyer shall have 8 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

38. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

39. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

40. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

41. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

42. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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43. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

44. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

45. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

46. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

47. Earnest Money Deposit. Within 25 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

48. Due Diligence Period. Buyer shall have 13 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

49. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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50. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

51. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

52. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

53. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

54. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

55. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. Time is of the essence with respect to each and every provision of this instrument.

56. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

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57. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

58. Earnest Money Deposit. Within 26 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

59. Due Diligence Period. Buyer shall have 3 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

60. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

61. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

62. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

63. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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64. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

65. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

66. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

67. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

68. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

69. Earnest Money Deposit. Within 26 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

70. Due Diligence Period. Buyer shall have 14 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

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71. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

72. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

73. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

74. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

75. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

76. Closing. Closing shall occur on or before January 8, 2024, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

77. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

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78. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Saddlebrook Maple Homes, located at 6021 Market Drive, Minneapolis, MN 44234, consisting of 119 homes, together with all improvements, fixtures and appurtenances. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

79. Purchase Price. The purchase price for the Property shall be $37,960,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

80. Earnest Money Deposit. Within 34 business days after the Effective Date, Buyer shall deposit $759,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

81. Due Diligence Period. Buyer shall have 11 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

82. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

83. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

84. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Gable Point Capital

By: Hector Hughes Title: President Date: 11/24/2023

_____

Hannah Mitchell

By: Patrick Nguyen Title: Managing Member Date: 11/24/2023

Exhibit A - Property

Saddlebrook Maple Homes, 6021 Market Drive, Minneapolis, MN 44234. Parcel containing approximately 4.55 acres, together with all improvements thereon.

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